

TapOwner — Pre-Launch Legal & Compliance Review

CONFIDENTIAL · PREPARED FOR ATTORNEY REVIEW

Prepared: July 14, 2026

Client: Frederick Danzoy — fred@salasers.com

Entity: Stokely Software LLC (Texas; formation in progress)

Product: TapOwner (iOS app + tapowner.com), Texas real-estate data tool

For: the reviewing attorney

1. What we're asking for

TapOwner is a pre-launch subscription app for licensed Texas real estate agents. Before we enable live billing or open to the public, we want a compliance review so we launch on solid footing. We are currently in payment test mode with **no live customers**; none of the documents in this packet are in effect yet.

We're seeking your review and guidance on five areas:

1. Our **Terms of Service** (Attachment A)
2. Our **Privacy Policy** (Attachment B)
3. **Texas Data Broker Act** registration — whether we qualify, and timing
4. Our **data-vendor (BatchData) reseller position** (Attachment C)
5. Any **TCPA / FCRA exposure** from how the product works

2. What TapOwner does (so the model is clear)

- **Free owner lookup.** The agent opens a map of Texas, taps a property, and sees the owner of record (name + mailing address) — sourced from **public county appraisal records** via the State of Texas TxGIO StratMap program.
- **Paid contact “trace” (the data-resale piece).** For 29¢, the agent unlocks that owner's phone/email, supplied **per-lookup by a licensed third-party provider (BatchData)** that performs Do-Not-Call scrubbing. We resell that contact data to the subscriber for their own real-estate use.

- **AI-drafted outreach.** The agent can generate a one-to-one email, sent from **the agent's own email account** — never from our servers.
- **Mini-CRM.** The agent saves owners with private notes and pipeline status.
- **“Farm” / Reverse Prospecting.** The agent draws an area on the map, sees every owner inside it (capped at 500), filters by property attributes (beds, baths, pool, sqft), and can **export a CSV**. That CSV contains owner names + mailing addresses (public record) and — for parcels the agent already paid to trace — phone numbers and emails.
- **Pricing / billing.** Prospector \$9.99/mo or Closer \$19.99/mo, 30-day trial. Account creation and billing happen on tapowner.com, not inside the app.

Deliberate risk-reduction choices (please confirm these are the right lines to hold)

- **No autodialer, no mass texting, no robocalls** anywhere in the product.
- Contact lookups are **one at a time** and billed per lookup; outreach emails are **one-to-one from the agent's own mailbox**.
- **Do-Not-Call and litigation-risk flags are shown on every phone number** and cannot be turned off.
- **Protected records** (Texas Tax Code §25.025) are excluded from display.
- We are **not a consumer reporting agency**; the ToS prohibits all FCRA-covered uses (tenant screening, employment, credit, insurance eligibility).

3. What we believe we must complete before launch (please confirm / correct)

This is our internal, researched-but-not-lawyer-verified checklist:

1. **Vendor redistribution rights (BatchData)** — see §4 Q4 and Attachment C.
2. **Terms of Service** with required acceptable-use clauses — Attachment A.
3. **Texas Data Broker Act registration** (Bus. & Com. Code ch. 509/510): Texas Secretary of State Form 4001 (~\$300/yr), post the SOS-prescribed conspicuous “data broker” notice on the website and in the app, and maintain a written comprehensive information-security program (12 statutory safeguards). Our reading is that the “more than 50,000 individuals”

prong (no revenue floor) is crossed at modest scale, so we plan to **register proactively at launch**. Please confirm the trigger analysis and the timing.

4. **Insurance:** E&O + cyber-liability coverage appropriate to a solo micro-SaaS.

5. **This attorney review** (ToS, privacy policy, registration timing, vendor terms).

4. Specific questions for you

Q1 — Terms of Service (Attachment A). Are the five acceptable-use clauses (lawful use; no FCRA uses; user is solely responsible for their own outreach compliance; honor opt-outs; no harassment/stalking), the “as-is” warranty disclaimer, and the liability cap adequate and enforceable under Texas law for this business? Anything missing or that should be strengthened? *Also please reconcile one wording point:* §5 prohibits the user from “bulk-export,” yet the Farm feature (§2) provides a CSV export for the user’s own business use — how should that clause be worded so the intended restriction (no reselling / no building a competing database) doesn’t contradict a feature we offer?

Q2 — Privacy Policy (Attachment B). Is it adequate for a business that handles both (a) subscriber data and (b) property-owner data drawn from public records plus a licensed vendor? Does it meet the Texas Data Broker Act’s requirements and any applicable consumer-privacy obligations? Is the owner suppression / opt-out mechanism sufficient?

Q3 — Texas Data Broker Act (ch. 509/510). Do we in fact qualify as a “data broker”? Is register-at-launch the correct timing, or is registration required earlier or not at all? Please confirm the exact required notice text and the 12 information-security-program safeguards, and whether our current design meets them.

Q4 — BatchData / vendor reseller rights (Attachment C). We resell BatchData’s licensed contact data to our subscribers on a per-lookup basis. Their standard self-serve terms appear to cover internal use only. Their account executive has sent the email in Attachment C stating BatchData “will not sue... regarding your reselling... in volumes less than 40k records per month” and to “stay in contract,” but they **declined to provide formal reseller terms “at this stage.”** **Is that email, on top of our existing self-serve contract, a sufficient legal basis to resell their data to end users at launch — or do we need a signed reseller/redistribution addendum, or at least written confirmation from someone with authority to bind BatchData?** What is our exposure if we launch on the email alone, and how would you recommend firming it up?

Q5 — Bulk export & TCPA. The Farm feature can export up to 500 rows to CSV: owner names and mailing addresses (public record), plus phone numbers and emails for any parcels the agent already paid to trace. **(a)** Does exporting phone numbers in bulk create TCPA / Do-Not-Call exposure for us as the platform, even though we operate no dialer and the subscriber contractually owns their own outreach compliance? **(b)** Should we limit the launch export to *mailing addresses only* (for physical direct mail, which we understand sits outside the TCPA) and drop the phone/email columns until vendor rights are formalized? **(c)** Does the BatchData 40k-records/month ceiling or their terms otherwise restrict this export?

Q6 — Entity & liability. Any recommendations tying the forming LLC, the ToS liability limitation, and the insurance together for a solo-operated micro-SaaS in this category?

Q7 — Anything we haven't asked that you would flag for a Texas-based real-estate-data / data-broker SaaS before public launch.

5. Logistics

- We are pre-launch (payment test mode); the goal is to clear this review before enabling live billing.
- We're aiming to keep this engagement to **no more than \$1,000** — please tell us if that isn't realistic for the scope.
- Primary contact: Frederick Danzoy, fred@salasers.com, 210-896-9769.

Attachment A — Terms of Service (current draft)

DRAFT — pending attorney review. Not yet in effect.

Last updated: July 13, 2026

1. What TapOwner is

TapOwner is a subscription service for licensed real estate professionals. It displays property ownership information compiled from public county appraisal records, and — when you choose to purchase a lookup — contact information supplied by a licensed data provider. TapOwner is operated from Texas and currently covers Texas properties.

2. Your account and billing

Plans are billed monthly through Stripe. Trials convert to a paid subscription automatically unless canceled before the trial ends. Per-lookup contact charges (“traces”) are metered to your subscription — you are only charged when a lookup returns verified contact data. You can cancel anytime; access continues through the end of the paid period. Manage your plan at tapowner.com.

3. Acceptable use — the important part

By using TapOwner you agree to ALL of the following:

1. **Lawful use only.** You will use TapOwner and any data obtained through it solely for lawful purposes connected to your real estate business.
2. **No FCRA uses.** TapOwner is not a consumer reporting agency and its data is not a consumer report. You will not use it to determine eligibility for credit, insurance, employment, housing/tenant screening, or any other purpose covered by the Fair Credit Reporting Act.
3. **You own your outreach compliance.** You are solely responsible for ensuring your calls, texts, and emails comply with all applicable laws — including the TCPA and federal/state Do-Not-Call rules for calls and texts, and CAN-SPAM for email. Do-Not-Call and litigation-risk flags shown in the app are informational aids, not legal advice, and displaying a number does not mean it is lawful for you to call it.

4. **Honor opt-outs.** If a property owner asks you not to contact them, you will honor that request promptly and permanently.
5. **No harassment or stalking.** You will not use TapOwner to harass, intimidate, stalk, or harm any person, or to locate a person for any purpose unrelated to a legitimate real estate inquiry.

We may suspend or terminate accounts that violate this section, without refund.

4. Data accuracy

Ownership records come from county appraisal districts and are updated on their schedule, not in real time. Contact data comes from a licensed third-party provider and is not guaranteed to be current or accurate. Verify independently before acting on it.

5. License and restrictions

Your subscription grants a personal, non-transferable license to use the data inside TapOwner for your own business. You may save individual contacts you have purchased. You may not resell, redistribute, scrape, bulk-export, or use the service to build or enrich any database or competing product.

6. Disclaimers and liability

The service is provided “as is” without warranties of any kind. To the maximum extent permitted by law, TapOwner’s total liability for any claim is limited to the amount you paid in the twelve months before the claim arose.

7. Changes and contact

We may update these terms; material changes will be announced by email or in the app. Questions: fred@salasers.com.

Attachment B — Privacy Policy (current draft)

DRAFT — pending attorney review. Not yet in effect.

Last updated: July 13, 2026

1. Two kinds of people, two kinds of data

TapOwner handles data about **subscribers** (real estate professionals with accounts) and about **property owners** (whose ownership records appear in the product). This policy covers both.

2. What we collect from subscribers

- **Account:** your email address, and the agent profile you choose to enter (name, brokerage, phone) used to sign your outreach emails.
- **Billing:** handled by Stripe. We never see or store your card number.
- **Usage:** product events (app opens, lookups purchased, emails drafted, properties saved) tied to your account, used to operate and improve the service.
- **Location:** used on your device to center the map around you. Your GPS location is not stored on our servers.
- **Contacts:** the app writes a contact to your phone only when you tap “Save to Contacts,” using the standard iOS contact form. We never read your address book.

3. Where property-owner data comes from

Ownership records (owner name, property and mailing address, assessed values) come from public records published by Texas county appraisal districts through the state’s StratMap program. Contact information (phone numbers, email addresses) is supplied per-lookup by a licensed data provider that performs Do-Not-Call scrubbing, and is purchased by a subscriber for their own business use.

4. Who we share data with

Only the processors needed to run the service:

- **Stripe** — payments and subscriptions.

- **BatchData** — the licensed contact-data provider (receives the property address you look up).
- **Anthropic** — AI email drafting (receives the property details and your agent profile for the draft you request; their API does not train on this data).
- **Railway** — cloud hosting for our servers and database.
- **Google** — address search geocoding (receives the address text you type).

We do not sell subscriber data. We do not run ads.

5. Property owners: your choices

If you are a property owner and want your contact information suppressed from TapOwner lookups, email fred@salasers.com with the property address and we will suppress it and forward the request to our data provider. Ownership records themselves are public county records; corrections to those must be made with your county appraisal district.

6. Retention and security

Purchased contact results are cached for up to 90 days. Account data is kept while your account is active and deleted on verified request. Data is encrypted in transit, access is restricted, and we maintain a written information security program.

7. Contact

Privacy questions or deletion requests: fred@salasers.com. Material changes to this policy will be announced by email or in the app.

Attachment C — BatchData correspondence (verbatim)

The following is the full text of an email received from BatchData's account executive in response to our request for formal reseller/redistribution terms.

From: Sean Murray <Sean.Mur@BatchService.com>

Received: July 14, 2026, 4:50 PM

Subject: Reselling / redistribution terms

We cannot provide this at this stage in the partnership.

BatchData will not sue you or pursue legal action regarding your reselling of our data in volumes less than 40k records per month. Let's just stay in contract.

This should stand as a formal statement until otherwise notified that you are able to buy at 7c and resell as needed.

Sean Murray
Senior Account Executive
Sean.Mur@BatchService.com
(602) 836-3472
www.batchdata.io

Our concern (for Q4): this is an account executive's email, not a signed contract amendment; it is framed as a promise not to sue rather than a grant of resale rights, it is revocable ("until otherwise notified"), and it carries a 40,000-records/month ceiling. We'd like your read on whether it is sufficient to launch on as-is.